Department of Local Government, Industry Regulation and Safety

GOVERNMENT OF WESTERN AUSTRALIA

CONSUMER PROTECTION WESTERN AUSTRALIA

FORM 1AA

RESIDENTIAL TENANCY AGREEMENT

RESIDENTIAL TENANCIES ACT 1987 (WA)

Section 27A

Approved by the Commissioner for Consumer Protection pursuant to the *Residential Tenancies Act 1987* section 88C (March 2026)

PART A

This agreement is made between:

Lessor [name of lessor(s)] _____

[lessor(s) contact details] ADDRESS: _____

TELEPHONE:_____ (optional) EMAIL:_____ (optional)

and

Tenant [name of tenant one] _____

[tenant contact details] ADDRESS: _____

TELEPHONE: _____ EMAIL: _____

Tenant [name of tenant two] _____

[tenant contact details] ADDRESS: _____

TELEPHONE: _____ EMAIL:_____

Lessor's property manager

_____

[name of lessor's property manager (if any) and contact details]

Giving of notices and information by electronic means

Indicate below for each of the following persons whether the person agrees to notices and information being given by email or facsimile under the *Electronic Transactions Act 2011*.

Lessor

Email: Yes € No € Facsimile: Yes € No €

[*insert email address or facsimile number if different from contact details above*]

Tenant one

Email: Yes € No € Facsimile: Yes € No €

[*insert email address or facsimile number if different from contact details above*]

Tenant two

Email: Yes € No € Facsimile: Yes € No €

[*insert email address or facsimile number if different from contact details above*]

Lessor's property manager

Email: Yes € No € Facsimile: Yes € No €

[*insert email address or facsimile number if different from contact details above*]

TERM OF AGREEMENT

(* delete as appropriate)

*This residential tenancy agreement is **periodic -** starting on _____/_____/_____.

*This residential tenancy agreement is **fixed -** starting on _____/_____/_____ and

ending on _____/_____/_____.

Note: *The start date for the agreement should not be a date prior to the date on which the tenant is entitled to enter into occupation of the premises.*

RESIDENTIAL PREMISES

The residential premises are [insert address]_____ and include/exclude*(* delete as appropriate):

_____

[include any additional matters, such as a parking space or furniture provided, or any exclusions, such as sheds]

MAXIMUM NUMBER OF OCCUPANTS

No more than [insert number] _____ persons may ordinarily live at the premises at any one time.

RENT

(* delete as appropriate)

The rent is [insert amount] $_____ per week/calculated by reference to tenants income

[insert calculation] _____

Payable weekly/fortnightly* in advance starting on _____/_____/_____.

The method by which the rent must be paid is: (* delete as appropriate)

(a) by cash or cheque*; or

(b) into the following account or any other account nominated by the lessor*:

BSB: _____ Account number: _____ Account name: _____ Payment reference:_____

or

(c) as follows*: _____

SECURITY BOND

A security bond of [insert amount] $_____and a pet bond of [insert amount] $_____must be paid by the tenant on signing this agreement.

Note: *Unless the rent for the premises exceeds $1,200 per week, the security bond must not exceed the sum of 4 weeks' rent plus a pet bond not exceeding $350 (if a pet is permitted to be kept at the premises). The pet bond is to be used to meet the costs of any damage caused by the pet or fumigation of the premises.*

RENT INCREASE

In the case of a periodic tenancy (see "TERM OF AGREEMENT") any rent increase will be no sooner than 12 months after the commencement of this tenancy or the date of the last rent increase. The lessor must give at least 60 days' notice of the increase.

Note: *If rent is calculated by reference to income, the requirement to provide a notice of rent increase only applies if the method of calculating the rent is changed.*

In the case of a fixed-term tenancy (see "TERM OF AGREEMENT") the rent increase will be [insert maximum increase or method of calculating increase, e.g. CPI or percentage] _____and take effect no sooner than 12 months after the commencement of this tenancy or the date of the last rent increase. The lessor must give at least 60 days' notice of the increase.

Note: *For fixed-term lease agreements exceeding 24 months, refer to Part C for details of subsequent rent increases.*

WATER SERVICES

Is scheme water connected to the premises? Yes € No €

Note: *If the property is not connected to scheme water, the tenant may have to purchase water at their own expense.*

WATER USAGE COSTS (SCHEME WATER)

The tenant is required to pay [insert number] _____% of water consumption costs.

PERMISSION TO CONTACT THE WATER SERVICES PROVIDER

Does the tenant have the lessor's permission to contact the water services provider for the premises to access accounts for water consumption at the premises and to communicate with the water services provider in relation to concessions available to the tenant or supply faults at the premises? Yes € No €

ELECTRICITY, GAS AND OTHER UTILITIES

Indicate for the utilities below whether or not the premises are separately metered:

Electricity Yes € No € **Gas** Yes € No € **Water** Yes € No €

Other [please specify]: _____ Yes € No €

Where the premises are **separately** metered to measure consumption of a specific utility, the tenant must pay for the connection and consumption costs as per the relevant account for the premises.

Where the premises are **not separately** metered to measure the consumption of a specific utility, the tenant must pay the consumption costs for that utility which will be calculated as follows:

- Electricity: [insert method of calculation] _____
- Gas: [insert method of calculation] _____
- Water: [insert method of calculation] _____
- Other [please specify]: _____ [insert method of calculation] _____

STRATA BY-LAWS

Strata by-laws ARE/ARE NOT* (*delete as appropriate) applicable to the residential premises. A copy of the by-laws is attached:

Yes € No €

SCHEME BY-LAWS FOR A COMMUNITY TITLES SCHEME

Belongs, community titles scheme, scheme by-laws, tier 2 scheme and tier 3 scheme have the meanings given in the *Community Titles Act 2018* section 3(1).

Scheme by-laws for a community titles scheme ARE/ARE NOT* (*delete as appropriate) applicable to the residential premises. A copy of the scheme by-laws is attached:

Yes € No €

If scheme by-laws for a community titles scheme are applicable to the residential premises, and the premises is in a tier 2 scheme or a tier 3 scheme, the scheme by-laws to be attached must include the scheme by-laws for a community titles scheme to which that tier 2 scheme or tier 3 scheme belongs.

PETS

The pets listed may be kept at the premises [please specify]:

Type:	Number:	Type:	Number:

The following conditions apply to the keeping of pets at the premises:	
Cleaning, maintenance or fumigation: [please specify]	
Other conditions: [please specify]	

Note: A tenant must have the consent of the lessor to keep a pet at the premises. A lessor can only refuse consent in certain circumstances. Any conditions on the keeping of a pet must be reasonable. Consent is not required to keep an assistance animal.

RIGHT OF TENANT TO ASSIGN OR SUB-LET

(* delete as appropriate)

* The tenant may assign the tenant's interest under this agreement or sub-let the premises.
* The tenant may not assign the tenant's interest under this agreement or sub-let the premises.
* The tenant may assign the tenant's interest under this agreement or sub-let the premises only with the written consent of the lessor.

RIGHT OF TENANT TO MAKE MODIFICATIONS

The tenant may make:

- furniture safety modifications to prevent injury to a child or person with a disability;
- modifications to prevent entry in circumstances of family violence;
- modifications to support a person with a disability; or
- minor modifications

in accordance with Part B, clauses 33 and 34 (below).

Other modifications (See Part B, clause 35):

The tenant may make the following modifications to the premises without the lessor's consent [please specify]:

(* delete as appropriate)

* The tenant may make other modifications to the premises with the consent of the lessor (will apply if no selection made).
* The tenant must not make any other modifications to the premises (does not apply in relation to disability access modifications).

PROPERTY CONDITION REPORTS

A property condition report detailing the condition of the premises must be completed by or on behalf of the lessor and 2 copies provided to the tenant within 7 days of the tenant moving into the premises.

If the tenant disagrees with any information contained in the property condition report, the tenant must note his or her disagreement on a copy of the property condition report and return this to the lessor or property manager within 7 days of receipt of the property condition report from the lessor. If the tenant does not give a copy of the property condition report back to the lessor, the tenant is taken to accept the property condition report as a true and accurate description of the condition of the premises.

A final property condition report must be completed by or on behalf of the lessor and provided to the tenant as soon as practicable but in any event within 14 days of the termination of the tenancy. The tenant must be given a reasonable opportunity to be present at the final inspection.

PART B

STANDARD TERMS APPLICABLE TO ALL RESIDENTIAL TENANCY AGREEMENTS

The *Residential Tenancies Act 1987* and the Residential Tenancies Regulations 1989 apply to this agreement. Both the lessor and the tenant must comply with these laws. Some of the rights and obligations in that legislation are outlined below.

RIGHT TO OCCUPY THE PREMISES

1. The tenant has the right to exclusive occupation and quiet enjoyment of the residential premises during the tenancy. The residential premises include the additional items but do not include the exclusions noted under "RESIDENTIAL PREMISES" in Part A.

COPY OF AGREEMENT

2. The lessor or the property manager must give the tenant:
   2.1. a copy of this agreement when this agreement is signed by the tenant; and
   2.2. a copy of this agreement signed by both the lessor or the property manager and the tenant within 14 days after it has been signed and delivered by the tenant.

RENT

3. The tenant must pay rent on time or the lessor may issue a notice of termination and, if the rent is still not paid in full, the lessor may take action through the court to evict the tenant.
4. The tenant must not withhold rent because the tenant is of the view that the lessor is in breach of the agreement.
5. The lessor or property manager must not:
   5.1. require the tenant to pay more than 2 weeks rent in advance; or
   5.2. require the tenant to pay rent by post-dated cheque; or
   5.3. use rent paid by the tenant for the purpose of any amount payable by the tenant other than rent; or
   5.4. require the tenant to pay any monetary amount other than rent, security bond and pet bond.
6. The lessor or property manager must give a rent receipt to the tenant within 3 days of the rent being paid unless the rent is paid into an authorised bank or credit union account nominated by the lessor.
7. A tenancy agreement cannot contain a provision for a penalty, damages or extra payment if the tenant fails to keep to the agreement or breaches any law. If an agreement allows a reduced rent or a rebate, refund or other benefit if the tenant does not breach the agreement, the tenant is entitled to the reduction, rebate, refund or other benefit in any event.
8. Warning: it is an offence for a tenant to fail or refuse to pay any rent due under a residential tenancy agreement with the

intention that the amount of such rent be recovered by the lessor from the tenant's security bond.

PAYMENT OF COUNCIL RATES, LAND TAX, WATER AND OTHER CHARGES

9. The lessor must pay all rates, taxes or charges imposed in respect of the premises under the *Local Government Act 1995*, the *Land Tax Act 2002* or any written law under which a rate, tax or charge is imposed for water supply or sewerage services under the *Water Agencies (Powers) Act 1984* (other than a charge for water consumed).
10. The lessor is responsible for any of the following contributions in respect of the premises:
    10.1. contributions (as defined in the *Strata Titles Act 1985* section 3(1)) imposed on the owner of the premises under the *Strata Titles Act 1985* section 100;
    10.2. contributions (as defined in the *Community Titles Act 2018* section 3(1)) determined by a community corporation as the amount it requires from the owner of the premises (as a member of the community corporation) under the *Community Titles Act 2018* section 88.

PUBLIC UTILITY SERVICES

11. ***Public utility services*** have the meaning given in the *Land Administration Act 1997* and refers to services such as gas, electricity and water.
12. If the premises are not separately metered to measure the tenant's consumption of a public utility service at the premises and the tenant is expected to pay for his or her consumption of the public utility service, the lessor and tenant must agree in writing an alternative method of calculating the charge to be paid by the tenant for the consumption of that public utility service.
13. The tenant must not be required to pay a charge in relation to a public utility service provided to the premises unless the charge is calculated by reference to the tenant's actual consumption of the public utility service at the premises and the tenant is given written notice of the charge.
14. If the premises are separately metered, the notice of the charge must specify:
    14.1. the relevant meter reading or readings; and
    14.2. the charge per metered unit; and
    14.3. the amount of GST payable in respect of the provision of the public utility service to the residential premises.
15. If the premises are not separately metered, the notice of the charge must specify:
    15.1. the calculation as per the agreed method; and
    15.2. the amount of GST payable in respect of the provision of the public utility service to the residential premises.

POSSESSION OF THE PREMISES

16. The lessor must:
    16.1. give the tenant vacant possession of the premises on the day on which the tenant is entitled to enter into occupation of the premises under the agreement; and
    16.2. take all reasonable steps to ensure that, at the time of signing this agreement, there is no legal reason why the tenant cannot occupy the premises as a residence for the term of this agreement.

TENANT'S RIGHT TO QUIET ENJOYMENT

17. The tenant is entitled to quiet enjoyment of the premises without interruption by the lessor or any person claiming by, through or under the lessor or having superior title to that of the lessor.
18. The lessor or the property manager will not interfere with, or cause or permit any interference with, the reasonable peace, comfort or privacy of the tenant in the use of the premises. The lessor or the property manager must also take all reasonable steps to ensure that the lessor's other neighbouring tenants do not interfere with the reasonable peace, comfort or privacy of the tenant in the use of the premises.

USE OF THE PREMISES BY TENANT

19. The tenant must:
    19.1. use the premises as a place of residence; and
    19.2. not use or allow the premises to be used for any illegal purpose; and
    19.3. not cause or permit a nuisance; and
    19.4. not intentionally or negligently cause or permit damage to the residential premises; and
    19.5. advise the lessor or property manager as soon as practicable if any damage occurs; and
    19.6. keep the premises in a reasonable state of cleanliness; and
    19.7. not cause or allow to be caused injury to the lessor, property manager or any person lawfully on adjacent premises; and
    19.8. not allow anyone who is lawfully at the premises to breach the terms of this agreement.
20. The tenant is responsible for the conduct or omission of any person lawfully on the premises that results in a breach of the agreement.

LESSOR'S GENERAL OBLIGATIONS FOR RESIDENTIAL PREMISES

21. In this clause, ***premises*** includes fixtures and chattels provided with the premises but does not include:
    21.1. any fixture or chattel disclosed by the lessor to the tenant as not functioning before the agreement was entered into; or
    21.2. any other fixture or chattel that the tenant could not reasonably have expected to be functioning at the time the agreement was entered into.

21A. The lessor must:
    21A.1. provide vacant possession of the premises and in a reasonable state of cleanliness and repair; and
    21A.2 maintain and repair the premises in a timely manner; and
    21A.3. comply with all laws affecting the premises including building, health and safety laws.

URGENT REPAIRS

22. ***Urgent repairs*** are defined by the *Residential Tenancies Act 1987* and fall into 2 categories: repairs that are necessary for the supply or restoration of an essential service and other urgent repairs.
23. Essential services are listed in the Residential Tenancies Regulations 1989 as electricity, gas, a functioning refrigerator (if one is provided with the premises), waste water management treatment and water (including the supply of hot water). Arrangements for repairs that are necessary to supply or restore an essential service must be made with a suitable repairer within 24 hours. Other urgent repairs are those that are not an essential service, but may nevertheless cause damage to the premises, injure a person or cause undue hardship or inconvenience to the tenant. Arrangements for these repairs must be made within 48 hours.
24. In every tenancy, if the need for urgent repair arises other than as a result of a breach of the agreement by the tenant:
    24.1. the tenant is to notify the lessor or the property manager of the need for urgent repairs as soon as practicable; and
    24.2. the lessor is to ensure that the repairs are carried out by a suitable repairer as soon as practicable after that notification; and
    24.3. if, within 24 hours (in the case of repairs for the supply or restoration of essential services) or 48 hours (in the case of other urgent repairs), the lessor or property manager cannot be contacted, or, having notified the lessor or property manager of the need for the repairs, the lessor fails to ensure that the repairs will be carried out by a suitable repairer as soon as practicable after that notification, the tenant may arrange for the repairs to be carried out by a suitable repairer to the minimum extent necessary to effect those repairs; and
    24.4. if a tenant arranges for repairs to be carried out under clause 24.3, the lessor must, as soon as practicable after the repairs are carried out, reimburse the tenant for any reasonable expense incurred by the tenant in arranging for those repairs to be carried out and paying for those repairs.

LESSOR'S ACCESS TO THE PREMISES

25. The lessor, property manager or person acting on behalf of the lessor, can only enter the premises in the following circumstances:
    25.1. in any case of emergency;
    25.2. to conduct up to 4 routine inspections in a 12 month period after giving the tenant at least 7 days, but not more than 14 days', written notice;
    25.3. where the agreement allows the rent to be collected at the premises where rent is payable not more frequently than once every week;
    25.4. to inspect and secure the premises if there are reasonable grounds to believe that the premises have been abandoned and the tenant has not responded to a notice from the lessor;
    25.5. carrying out or inspecting necessary repairs to or maintenance of the premises, at any reasonable time, after giving the tenant not less than 72 hours' notice in writing before the proposed entry;
    25.6. showing the premises to prospective tenants, at any reasonable time and on a reasonable number of occasions during the period of 21 days preceding the termination of the agreement, after giving the tenant reasonable notice in writing;
    25.7. showing the premises to prospective purchasers, at any reasonable time and on a reasonable number of occasions, after giving the tenant reasonable notice in writing;
    25.8. if the tenant agrees at, or immediately before, the time of entry;
    25.9. in accordance with the *Residential Tenancies Act 1987* section 46(6A) and (6B).
26. There are directions within the *Residential Tenancies Act 1987* which guide tenants, lessors and property managers on appropriate behaviour in relation to gaining or granting access to the premises. The following summary may assist.

Reasonable time

27. ***Reasonable time*** means:

27.1. between 8.00 am and 6.00 pm on a weekday; or
27.2. between 9.00 am and 5.00 pm on a Saturday; or
27.3. at any other time agreed between the lessor and each tenant.

Requirement to negotiate a day and time for a proposed entry by the lessor

28. If it would unduly inconvenience the tenant for the lessor or property manager to enter the premises as specified in a notice of an intention to enter premises on a particular day, the lessor or property manager must make a reasonable attempt to negotiate a day and time that does not unduly inconvenience the tenant.

Requirement to give tenant notice of proposed entry

29. Where the lessor or property manager gives a tenant notice of an intention to enter premises on a particular day, the notice must specify the day and whether it will be before or after 12.00 pm.

Tenant entitled to be present

30. The tenant is entitled to be on the premises during the entry by the lessor, the property manager or any other person acting on behalf of the lessor.

Entry must be reasonable and no longer than necessary

31. The lessor or property manager exercising a right of entry:
    31.1. must do so in a reasonable manner; and
    31.2. must not, without the tenant's consent, stay or permit others to stay on the premises longer than is necessary to achieve the purpose of the entry.

Lessor's obligation to compensate tenant if damage to tenant's goods

32. If the lessor or property manager (or any person accompanying the lessor or property manager) causes damage to the tenant's goods when exercising a right of entry, the lessor is obliged to compensate the tenant.

MODIFICATIONS TO THE PREMISES

33. The tenant is permitted to make modifications or changes to the premises as follows:
    33.1. Security modifications to prevent family violence – The tenant may make prescribed modifications necessary to prevent a person from entering premises in circumstances of family violence, including, installing security alarms and cameras; locks, screens and shutters on windows; security screens on doors; exterior lights; locks on gates; and pruning of shrubs and trees to improve visibility. The tenant must give the lessor written notice of their intention to make one or more of these prescribed modifications but does not need the lessor's consent. Work must be carried out by a suitable tradesperson. The tenant must provide a copy of the invoice for the work to the lessor within 14 days of the work being carried out.
    33.2. Furniture safety modifications – The tenant may, with the lessor's consent, attach furniture to a wall for the purpose of ensuring the safety of a child or person with a disability. The tenant must ask the lessor for consent to attach the furniture and the lessor must respond within 14 days. The lessor may only refuse consent in limited circumstances, including where the modification would disturb asbestos, the property is heritage listed or scheme by-laws do not permit the furniture to be secured. If the lessor does not respond within 14 days, consent is automatically granted.
    33.3. Minor modifications – The tenant may, with the lessor's consent, make a minor modification to the premises. The tenant must ask the lessor for consent to make a minor modification and the lessor must respond within 14 days. The lessor can only refuse consent in limited circumstances, including where the modification would disturb asbestos, the property is heritage listed or where a written law or scheme by-law prevents the modification. If the lessor wants to refuse for another reason, they must get the approval of the Commissioner for Consumer Protection. If the lessor does not respond within 14 days, consent is automatically granted.
    Note: *A list of minor modifications is set out in the regulations and is available on the Consumer Protection website.*
34. The lessor cannot refuse consent to a modification needed to allow a person with a disability to access or use the premises if refusal would be unlawful under the *Equal Opportunity Act 1984* (WA) or the *Disability Discrimination Act 1992* (Cth).
35. For modifications not dealt with in clause 33 and 34 ("other modifications"):
    35.1. If Part A lists other modifications that the tenant is allowed to make, the tenant may make those modifications after giving the lessor notice of the tenant's intention to make the modifications.
    35.2. If Part A allows the tenant to make other modifications with the lessor's consent, the tenant may ask the lessor for consent to make the modification and the lessor must respond within 28 days. The lessor must not unreasonably refuse consent and may impose reasonable conditions on the consent. If the lessor does not respond within 28 days, consent is automatically granted.
36. Tenant responsibilities in relation to modifications:
    36.1. The tenant is responsible for the costs of making a modification and for maintenance of the modification.
    36.2. Modifications must be made taking into account the age and character of the property and in some cases must be

carried out by a qualified tradesperson.

36.3. At the end of the tenancy, the tenant must remove the modification and restore the premises, unless otherwise agreed with the lessor.

37. Lessor modifications – If the lessor wants to make a modification to the premises, the lessor must ask the tenant for consent and the tenant must respond within 28 days. The tenant cannot unreasonably refuse consent and may impose conditions, including a condition about when the lessor can enter the premises to carry out work. If the tenant does not respond within 28 days, consent is automatically granted.

Note: *Further information about modifications, forms, timeframes and the Commissioner application process is available on the Consumer Protection website at* www.consumerprotection.wa.gov.au/renting-home

LOCKS AND SECURITY DEVICES

38. The prescribed means of securing the premises are specified in the *Residential Tenancies Regulations 1989*. In every tenancy:

38.1. the lessor must provide and maintain such means to ensure the premises are reasonably secure as prescribed in the regulations; and

38.2. any lock or security device at the premises must not be altered, removed or added by a lessor or tenant without the consent of the other or except in accordance with clause 38.4; and

38.3. the lessor or the tenant must not unreasonably withhold the consent referred to in clause 38.2; and

38.4. a tenant may alter or add any lock or other means of securing the residential premises in accordance the *Residential Tenancies Act 1987* section 45(2)(a), and the tenant and lessor must comply with section 45(2)(b) and (c) in relation to copies of keys to altered or added locks or other means of securing the residential premises.

PETS

39. The tenant may keep a pet at the premises with the consent of the lessor. The tenant must ask the lessor for consent to keep the pet and the lessor must respond within 14 days. The lessor can only refuse consent in limited circumstances, including where a written law, local law or scheme by-law does not permit the pet. If the lessor wants to refuse for another reason, they must get the approval of the Commissioner for Consumer Protection. The lessor may impose reasonable conditions on consent to keep a pet, some conditions require the approval of the Commissioner for Consumer Protection. If the lessor does not respond within 14 days or apply to the Commissioner for Consumer Protection (if required) the lessor is taken to have approved the request for the pet.
40. The tenant is responsible for any nuisance or damage caused by the pet.
41. A tenant may keep an assistance animal at the premises without the consent of the lessor.

Note: *Further information about pets, relevant forms, timeframes and the Commissioner application process is available on the Consumer Protection website at* www.consumerprotection.wa.gov.au/renting-home

TRANSFER OF TENANCY OR SUB-LETTING BY TENANT

42. If the tenancy agreement allows the tenant to assign his or her interest or sub-let the premises with the lessor's consent:

42.1. the tenant cannot assign his or her interest or sub-let the premises without the written consent of the lessor; and

42.2. the lessor must not unreasonably withhold such consent; and

42.3. the lessor must not make any charge for giving such consent other than the lessor's reasonable incidental expenses.

CONTRACTING OUT

43. It is an offence to contract out of any provision of the *Residential Tenancies Act 1987*.

ENDING THE RESIDENTIAL TENANCY AGREEMENT

44. This residential tenancy agreement can only be terminated in certain circumstances.
45. The tenant agrees, when this agreement ends, to give vacant possession of the premises to the lessor. Before giving vacant possession to the lessor the tenant must:

45.1. remove all the tenant's goods from the residential premises; and

45.2. leave the residential premises as closely as possible in the same condition, fair wear and tear excepted, as at the commencement of the tenancy; and

45.3. return to the lessor all keys, and other opening devices or similar devices, provided by the lessor.

46. The tenant may be liable for losses incurred by the lessor if the above requirements are not met.

ENDING A FIXED-TERM AGREEMENT

47. If this agreement is a fixed-term agreement it may be ended:

47.1. by agreement in writing between the lessor and the tenant; or

47.2. if either the lessor or tenant does not want to renew the agreement, by giving written notice of termination. The notice must be given to the other party at least 30 days prior to the date on which vacant possession of the premises is to be delivered to the lessor. The notice may be given at any time up until the end of the fixed term but cannot take effect until the term ends.

ENDING A PERIODIC AGREEMENT

48. If this agreement is a periodic agreement it may be ended:
    48.1. by agreement in writing between the lessor and the tenant; or
    48.2. by either the lessor or the tenant by giving written notice of termination to the other party. The notice may be given at any time. The lessor must give at least 60 days' notice and the tenant must give at least 21 days' notice.

ENDING A TENANT'S INTEREST IN A RESIDENTIAL TENANCY AGREEMENT BECAUSE OF FAMILY VIOLENCE

49. A tenant's interest in a residential tenancy agreement may be ended:
    49.1. by the tenant under the *Residential Tenancies Act 1987* section 60(1)(ba) if the tenant or a dependant of the tenant is, during the tenancy period, likely to be subjected or exposed to family violence; or
    49.2. by the tenant under the *Residential Tenancies Act 1987* section 60(1)(bb) if the tenant receives a copy of a notice of a termination referred to in paragraph 49.1 from another tenant; or
    49.3. by a court under the *Residential Tenancies Act 1987* section 60(1)(bc) if a family violence order is in force against a tenant to protect another tenant or if the court is satisfied that the tenant has committed family violence against another tenant or their dependant during the tenancy period.

OTHER GROUNDS FOR ENDING AGREEMENT

50. The *Residential Tenancies Act 1987* also authorises the lessor and tenant to end this agreement on other grounds. The grounds for the lessor include sale of the residential premises, breach of this agreement by the tenant, where the agreement is frustrated (e.g. where the premises are destroyed or become uninhabitable) and hardship. The grounds for the tenant include breach of this agreement by the lessor, where the agreement is frustrated (e.g. where the premises are destroyed or become uninhabitable) and hardship.
51. For more information, refer to the *Residential Tenancies Act 1987* or contact the Department of Local Government, Industry Regulation and Safety on 1300 30 40 54 or visit www.consumerprotection.wa.gov.au/renting-home.
52. **Warning**: It is an offence for any person to obtain possession of the residential premises without an order of the Magistrates Court if the tenant does not willingly move out (a termination notice issued by the lessor or property manager is not a court order). The court may order fines and compensation to be paid for such an offence.
53. **Warning**: It is an offence for a tenant to fail to provide the lessor with a forwarding address when vacating the premises.

SECURITY BOND

54. The security bond is held by the Bond Administrator.
55. One, some or all the parties to the residential tenancy agreement may apply to the Bond Administrator for the release of the security bond ("security bond release application").
56. The lessor agrees that if the lessor or the property manager makes a security bond release application for all or part of the security bond to be released to the lessor, the lessor or property manager will provide the tenant with evidence to support the amount that the lessor is claiming.
57. Where a security bond release application is not made by each person known to the Bond Administrator as a party to the tenancy agreement, the Bond Administrator must give written notice of the security bond release application to each party known to the Bond Administrator that did not make the application. If a party responds to the Bond Administrator's written notice by disputing the security bond release application or does not respond within the period stated in the notice, the Bond Administrator must refer the security bond release application to the Commissioner for Consumer Protection for decision.
58. The Bond Administrator can only release the security bond when it receives:
    58.1. a security bond release application made or agreed to by each person the Bond Administrator knows is a party to the residential tenancy agreement (which may include where a party withdraws a notice of dispute in respect of a security bond release application or the parties agree to a variation of the security bond release application); or
    58.2. a decision of the Commissioner for Consumer Protection; or
    58.3. an order of the court.
59. **Warning**: It is an offence for a lessor or a property manager to ask or require a tenant to sign a security bond release application unless:
    59.1. the residential tenancy agreement has terminated, or all tenants have delivered up vacant possession of the premises and the parties agree in writing to terminate the agreement in accordance with section 81C(4) of the *Residential Tenancies Act 1987*, or the application is for the partial release of the security bond in accordance with section 81D of the *Residential Tenancies Act 1987*; and
    59.2. the application states the amount of the security bond (if any) to be paid to the lessor and the tenant or, if there are co-tenants, each tenant.

TENANCY DATABASES

60. A lessor or property manager can only list a person on a residential tenancy database if:

60.1. the person is a named tenant on the residential tenancy agreement; and
60.2. the residential tenancy agreement has been terminated; and
60.3. the person owes the lessor a debt that is greater than the security bond or a court has made an order terminating the tenancy agreement.

NOTICES

61. A notice under this agreement must be given:
    61.1. in the prescribed form; or
    61.2. if there is no prescribed form but there is an approved form — in the approved form; or
    61.3. if there is no prescribed form or approved form — in writing.
62. A notice from the tenant to the lessor may be given to the property manager or the lessor's agent.
63. A notice under this agreement may be given to a person:
    63.1. by giving it to the person directly; or
    63.2. if an address for service for the person is given in the agreement — by posting it to the address for service; or
    63.3. if the person has agreed under Part A to the electronic service of notices — by sending the notice to the email address or facsimile number given in Part A.
64. A person may withdraw his or her consent to a notice being given to the person by email or facsimile by giving a notice to that effect to each other party to the agreement.

ADVICE, COMPLAINTS AND DISPUTES

DEPARTMENT OF LOCAL GOVERNMENT, INDUSTRY REGULATION AND SAFETY

65. The *Residential Tenancies Act 1987* allows the Commissioner for Consumer Protection to give advice to parties to a residential tenancy agreement, to look into complaints and, wherever possible, help to settle them. The Department of Local Government, Industry Regulation and Safety may be contacted by telephone on 1300 30 40 54 or by visiting one of the Department's offices.
66. The tenant should generally approach the lessor or property manager to solve any problem before approaching the Department of Local Government, Industry Regulation and Safety. The Department's role is one of mediation and conciliation. Except for disputes about the keeping of pets, making minor modifications, or releasing the security bond, the Commissioner cannot issue orders or make determinations in respect of disputes.

IF A DISPUTE CANNOT BE RESOLVED

67. For most disputes about keeping a pet, making a minor modification, or releasing the security bond, the Commissioner may make a decision to resolve the dispute.
    ***Note**: Information about the Commissioner's dispute resolution process is available on the Consumer Protection website at* www.consumerprotection.wa.gov.au/renting-home.
68. For other matters, if a dispute arises between the lessor and the tenant and the dispute cannot be resolved, either party may apply to the Magistrates Court to have the dispute decided by the court. The court can make a range of orders, including:
    68.1. restraining any action in breach of the agreement; and
    68.2. requiring a party to the agreement to perform a certain action under the agreement; and
    68.3. order the payment of any amount owing under the agreement; and
    68.4. order the payment of compensation for loss or injury.

PART C

IMPORTANT INFORMATION

Additional terms may be included in this agreement if:
(a) both the lessor and tenant agree to the terms; and
(b) they do not conflict with the *Residential Tenancies Act 1987*, the *Residential Tenancies Regulations 1989*, or any other law; and
(c) they do not breach the provisions about unfair contract terms in the *Fair Trading Act 2010*; and
(d) they do not conflict with the standard terms of this agreement.

ADDITIONAL TERMS ARE NOT REQUIRED BY THE *RESIDENTIAL TENANCIES ACT 1987*. HOWEVER, ONCE THE PARTIES SIGN THIS AGREEMENT, THE ADDITIONAL TERMS ARE BINDING UPON THE PARTIES UNLESS THE TERM IS FOUND TO BE UNLAWFUL.

ADDITIONAL TERMS:

_____

_____

_____

_____

_____

_____

_____

_____

THE LESSOR AND TENANT ENTER INTO THIS AGREEMENT AND AGREE TO ALL ITS TERMS.

Signed by the **LESSOR/PROPERTY MANAGER**

_____ _____/_____/_____

[Signature of lessor/property manager] Date

Signed by the **TENANT/S (strike-out non-applicable signature blocks)**

_____ _____/_____/_____

[Signature of tenant] Date

_____ _____/_____/_____

[Signature of tenant] Date

_____ _____/_____/_____

[Signature of tenant] Date

_____ _____/_____/_____

[Signature of tenant] Date